



A NEIGHBOR'S GUIDE TO RIBBIS

Based on the psakim of Rav Pinchos Vind shlita

Having a good neighbor is a huge asset. In particular, a good neighbor from whom to borrow eggs, sugar, flour, oil, or whatever other household supplies happen to be missing that evening, is a highly appreciated commodity.

Apart from being useful, it is also a great opportunity for us to help each other out, and perform the great mitzvah of giving a free loan.

However, while doing so, we must take care to avoid the severe issurim of ribbis that can be common pitfalls between neighbors. The halachos are straightforward and easy to master, and with Hashem's help, we will be able to continue these acts of chessed in a kosher and mehudar way.

This guide is not comprehensive, so if you have any questions, please don't hesitate to call the Kav Haribis hotline:

732-228-8558 ext. 1

Or email: kavharibis@gmail.com

*Based on the psakim of HaRav Pinchos Vind shlita, author of sefer
"Ribbis Halacha L'maaseh – Bris Pinchos"*

*Compiled by R' Mordechai Binstock, member of the Beis Hora'ah
L'inyanei Ribbis of HaRav Pinchos Vind shlita*

*For questions or comments about this guide, please call 058-321-5569,
or email gmbinstock@gmail.com*

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Rules of Ribbis

We will mention four main principles of ribbis that commonly apply to neighbors:

Ribbis Ketzuzah: Lending money, food, or items on condition to receive more in return.

Ribbis D'Rabbanan: Returning more than what was borrowed without having made a condition in advance.

Seah B'seah: Borrowing items that can change in value, where there is a concern that one will repay more value than they borrowed.

Ribbis Devarim: Verbal ribbis, giving extra by way of praise, excessive thanking, or other benefits.

Ribbis Ketzutzah

This is an *issur d'Oraysa* to lend something with an agreement to receive more in return. This applies both to returning extra quantity or extra value.

You knock on your neighbor's door to borrow a bottle of ketchup. Your neighbor is happy to give you an unopened bottle of Gefen ketchup that her husband once bought, but asks that if you're anyway going to the grocery, could you please return a bottle of Heinz ketchup, as that's the only type her kids like. Since Heinz ketchup costs more than Osem, this would be ribbis ketzutzah.

Returning Extra

There is an *issur d'rabbanan* to return more than you borrowed, even if this was not a condition. This is one of the most common issues between neighbors. The *issur* applies both to returning extra in quantity (borrowing half a bottle of oil and returning a full bottle), or in quality or price (borrowing Osem ketchup and returning Heinz).

However, that does not mean you need to take out a tape-measure. Whatever people consider to be the same amount is *mutar*. Therefore,

if you borrowed what looked like half a bottle, you can return approximately half a bottle, without having to worry that you might be a half-an-inch off. However, you may not return three-quarters of a bottle or a full bottle.

If you borrowed a cucumber, you can return a cucumber that is approximately the same size, without having to worry if the second one is slightly bigger. But if you borrowed a tiny one, clearly you can't return a huge one.

If you borrowed two medium eggs, you can return two large eggs, as people treat them the same way. But if you borrowed a tray of medium egg, you may not return a tray of large eggs, as it is a noticeable difference.

[Note: There is a common assumption that it is mutar for neighbors to return a bit more than what they borrowed. According to many opinions, this is incorrect. But in any case, you can return what looks the same, as above.]

I Only Buy Pampers

If you borrowed something that is lower quality than what you normally use, and you don't want to go and buy a whole package which you won't use just to return what you borrowed, you may return your higher-grade version to avoid this loss. You should explain that this is the reason you are returning the better version.

It's your kids' bedtime, and you're out of diapers. You send your son to the neighbor, and he comes back with two Parents Choice diapers. Not your favorite, but your baby will certainly manage till the next day when you will go and buy your precious Pampers. But then you realize that you

have a problem. You're not going to buy a whole package of Parent choice just to return two to the neighbor. But Pampers cost more, and you can't exactly return one and a half diapers.

Don't worry. You can return Pampers, and explain to the neighbor that you're returning these because you don't want to buy a package of Parents Choice that you won't use.

Help, I Can't Remember How Much I Borrowed!

If you don't remember how much you borrowed, you can repay the higher estimate to be on the safe side, as long as it could be what you actually borrowed. However, you may not return more than that.

You borrowed an open carton of milk one morning. It was probably half-full, maybe two-thirds. You may return a carton that is about two-thirds full, to be sure you returned what you borrowed. But you may not return a carton that is full almost till the top.

Seah B'seah

If someone borrows an item and it goes up in price, the extra value he returns is ribbis, even though he is returning an identical item. Because of this, Chazal actually forbade borrowing all items on condition to returning the same amount, as all items can change in price.

However, they gave several heterim as we shall list below, which means that practically, it is mutar in most cases.

Yatza Hashaar: It is mutar to borrow an item if it is easily available in the stores, and the price stays stable (for Ashkenazim: some hold at least a day others hold at least a week; for Sefardim: a few months).

There is no problem in borrowing flour, sugar, oil, or similar products, as they are easily available in the stores and have a stable price.

Yesh Lo: It is mutar to borrow an item if the borrower owns some of the commodity that he wants to borrow, which is suitable for repaying the loan.

If you have one potato, you can borrow an entire sack, even if potatoes don't have a stable price. But it wouldn't be enough if you just have a slice of potato, as you couldn't use that to repay the loan.

Davar Muat: It is mutar to borrow items that have a low value, where even if the price went up, you wouldn't care about returning the extra value. Anything below 5-6 dollars is certainly considered a davar muat.

You can borrow three tomatoes, even if they don't have a stable price, and you don't have any tomatoes yourself.

Cash Value: If none of these heterim apply, you can fix the debt as the value of the item, rather than the quantity.

The stores have closed already on erev Shabbos when you realize that you forgot to buy watermelon. No need to panic, you saw your neighbor schlepping three watermelons back from the store, for sure you can borrow one and return one on Sunday.

All the stores have them, but they're still coming into peak season, so the price is changing every few days. You have a few slices left from your last one, but you can't use that towards repaying a whole one. And for 2 dollars a pound and weighing in at 6.9 pounds, it's not such a davar muat.

Instead, you can fix the debt as the value, and owe them 14.00 dollars.

Returning a Different Type of Item

If you want to return a different type of item than the one you borrowed which costs the same, some of the heterim for seah b'seah don't apply. Instead, you may do it in one of the following ways:

Items of Low Value: You may borrow an item of low value on condition to return a different item that costs the same.

Your neighbor knocks on your door one Shabbos and asks if you have any spare soft-drink. You may lend them a bottle of orange-flavored drink, and ask if they could please return a bottle of mango-flavored drink, which costs the same.

Making it a Sale: Instead of calling it a loan, you make it into a sale, where you are purchasing one item and will pay for it with a different item.

You're having loads of guests and you don't want to wash dishes, so you ask your neighbor if they have a spare package of those fancy disposable plates. She says sure, but they have tons of plates, could you please return a package of bowls instead, they cost the same. You can do this as a sale: I'm buying plates, and I'll pay for them with bowls.

[Note: If this happens on Shabbos, you can't call it a sale. But you still can't call it a loan. Instead, you should say: Give me plates, and I'll give you bowls tomorrow.]

Don't Worry, It's a Gift

One of the most common mistakes people make is to think that ribbis is allowed if you give it as a gift. This is incorrect.

If someone gave you a loan, it is assur to give them a gift, unless it is completely unconnected and you would have given it anyway (see below). But if you're only giving this gift because of the loan, it's assur. This also applies to any other favors that you do for them because of the loan.

You borrow half a bottle of grape-juice, but it feels cheap to return half a bottle, so you return a full bottle and say that it's a gift. This is assur. You don't normally hand out grape-juice to your neighbors. You're only doing it now because they lent you, which is ribbis d'rabbanan.

Some people will try to get out of ribbis by saying that anything they ever give their neighbor is a gift. This way, their neighbor can give back more, as they never gave them a loan to begin with – they didn't have to give it back.

This isn't so straightforward. If it is understood and expected that the neighbor will return what they took, then it is considered a loan, even if they called it a gift.

You always lend your neighbor milk, and tell them it's a gift. But if they wouldn't return it, you wouldn't keep on giving them – you don't plan on being the local free-milk gemach. If so, you can't exactly call it a gift.

If it was actually given as a genuine gift without expectation of receiving it back, there is no issue of ribbis to return extra. But if you do, you mustn't say that you are giving it in return for what they gave you.

Unrelated Gifts and Favors

However, any gift you would have given regardless of the loan is mutar. Therefore, if you sometimes send your neighbors cookies when you're in a baking mood, you can still send them even if you happen to owe them money or sugar. You can also do any kind of favors for them if you would have done them anyway.

However, if you wouldn't have done it had they not given you a loan, or if you give them extra because of the loan, it is assur.

Your neighbor asks if you can pick up her kid from playgroup, which isn't too far from your child's playgroup. Normally you wouldn't mind, but it's raining today and you're in a rush. But you still owe them a challah from last Shabbos, so you don't want to say no. This is assur.

Even if you would have given a gift anyway, there are a few exceptions where it is still assur.

While repaying the loan. You should not give a gift at the same time as repaying the loan, as it looks like ribbis.

You just baked some cookies, and you want to give some to your friend downstairs. At the same time, you remember that you owe them a bag of milk, so you go downstairs to bring them cookies and milk.

This is assur. First return the milk, then a few minutes later, you can go down and bring the cookies.

Doing it for the loan. Even if you would have given the gift anyway, you may not say or intend that this time it is for the loan.

When you go downstairs to bring the cookies, don't say, "This is to say thank you for the milk", even if you would have given them anyway.

[There are two other cases which are assur even if you would have done it anyway: **1)** A gift or favor that is in public, e.g., letting the lender use your car; **2)** Using the borrower's things without permission.]

Borrowing a Waffle, Borrowing a Waffle-Maker

There is an important point about borrowing that confuses people. In English, the word "borrow" is used both for borrowing a waffle – where you will eat the waffle and return another one; and for borrowing a waffle-maker – where you will hopefully return the same machine.

In Lashon Kodosh, these are two different terms, with different halachos.

Borrowing a waffle is called "halva'ah", which is subject to the halachos of ribbis. Therefore, if you borrow a waffle, you may not return waffles and ice cream.

Borrowing a waffle-maker is called "she'eilah". There is no issue of ribbis with a she'eilah. Therefore, you may return the waffle-maker with as much ice cream as you like, and you may even pay a rental fee.

Saying "Thank You"

Apart from physical ribbis, there is an issur of giving verbal ribbis. Therefore, one should not excessively thank or praise the lender for the loan.

Saying, “Thank you so, so, so much, you’re so nice, you’re the best neighbor ever”, is problematic.

However, you may certainly say a casual thanks that you would normally say in any casual interaction, even if it did not involve a loan.

You’re out of sugar. You knock on the first neighbor’s door, but they’re out of sugar too. So you say, “No problem, thanks a lot, have a good night”, and try the next neighbor. They do have sugar, which they happily lend you. You can certainly say, “Thanks a lot, have a good night”, because that’s just what you said to the first neighbor, who didn’t even lend you sugar.

What Do I Do Now?

If you received ribbis, you must return it. So if you received an extra half-bottle of oil, you should return the extra value.

If you’re the one who gave ribbis, you may choose to be mochel the ribbis that the lender owes you. The ideal way to be mochel is to say, “Hareini k’ilu hiskabalti – I consider it as if I have received what you want to return.”

[Note: This does not allow giving ribbis in the first place. You may not return extra and say that you’re mochel it.]

You may also tell the lender to return the ribbis by giving it tzedakah on your behalf.

Your neighbor just read this guide. She knocks on your door, saying that she thinks she owes you 5 shekel for the extra grape-juice you returned.

(Actually, thinking back to the things she lent you over the years, maybe she owes you quite a bit more....)

If you wish, you may tell her that it's fine, thank you so much, but you're mochel the ribbis, you consider it as if it was returned.

You may also tell her to give the money to tzedakah on your behalf.

Apart from this, the best way to fix ribbis mistakes is to learn the halachos of ribbis – as you have just done.

Thank you for reading this guide. B'ezeras Hashem, by learning these halachos, we will be able to continue performing great acts of chessed, while receiving the tremendous brachos that the Torah bestows on those who are careful with ribbis:

"למען יברכך ה' א-לקיך בכל מעשה ידיך"



This guide is based on the psakim of HaRav Pinchos Vind shlita, a world-renowned authority on hilchos ribbis. As always, there are different opinions about certain halachos, and it goes without saying that you should feel free to consult your own Rav.



If you have any questions or comments, to receive copies of this guide, or to arrange shiurim on hilchos ribbis, please call 732-606-7923, or email kavharibis@gmail.com



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דרך מקח: ט"ז קס"ב ס"ק ט'

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אל תדאגי, זאת מתנה

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להגיד מתנה כשכוונתו להלוואה: ע' שו"ע הרב נ"ד

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אסור להגיד שמחזירו עבור מה שקיבל: ברית פינחס ספר התשו' ח"א שאלה צ"א

מתנות וטובות שאינם קשורים

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בשעת פירעון: שו"ע הרב ז', ברית פינחס ה:ב

מפרש או מכון: שו"א הרב י"א, ברית פינחס ה:ב

בפרהסיא ושלא ברשות: ק"ס:ז

ללוות וופל, לשאול מכשיר וופל

בשאלה אין איסור ריבית: קע"ו:ב, ובלבד שלא יקבל עליו כל האחריות

להגיד תודה

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להחזיר ע"י נתינה לצדקה: פשוט דלא גרע ממחילה

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מקורות

(רוב הפסקים מלוקטים מספר "ריבית הלכה למעשה - ברית פינחס", להלן: ברית פינחס)

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אבק ריבית: ק"ס:ד

סאה בסאה: קס"ב:א

ריבית דברים: ק"ס:י"א-י"ב

ריבית קצוצה

תוספת בכמות או בשווי: קס"א:ה, קע"ז:ז

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להחזיר יותר בלי תנאי, בין בכמות בין בשווי: ק"ס:ד, ברית פינחס ג:כ

במוצרים שהדרך לשער, מותר לשער: ב"מ עה: 'כל ימי הגריד אחד' ופרש"י שם, ברית

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ההיתר להחזיר מוצר השווה יותר במקום הפסד ללווה: ע"פ היתר של רגיל ק"ס:ז, ברית

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פינחס שליט"א)

עושהו דמים: קס"ב:א

להחזיר סוג מוצר אחר

איסור חיטין בדוחן: קס"ב:ה בהגה

Dedicated to our dear neighbors